

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S RESPONSE TO COMPLAINANT'S MOTION FOR EXTENSION OF
SCHEDULING ORDER, OR, IN THE ALTERNATIVE, MOTION FOR STATUS
CONFERENCE FOR EXTENSION OF SCHEDULING ORDER**

SM LINE CORPORATION ("SM Line" or "Respondent") submits this brief response to address some of the statements raised by Complainant in its Motion for Extension of Scheduling Order, or, in the Alternative, Motion for Status Conference submitted earlier today.

Preliminarily, Respondent points out that it does not oppose Complainant's request for an extension of the scheduling order. Respondent communicated its position on the issue to Complainant's Counsel during the meet and confer pursuant to 46 C.F.R. §§ 502.71(a) which took place on October 23, 2023. This matter involves thousands of shipments and hundred-thousands of pages documents. The process of reviewing, producing, redacting, and putting them into context is time consuming.

Respondent, however, disagrees with Complainant's characterization of Respondent's behavior during discovery. Complainant's representation that Respondent did not oblige to its

duty to produce documents on a rolling basis, is false. Between August 15 and October 18, 2023, Respondent produced a total of 52,297 documents to Complaint as follows:

Date	Bates Range	#Documents
8/15/2023	SM Line_0000001 - SM Line_0035518	29,104
8/21/2023	SM Line_0035519 - SM Line_0044042	4,871
9/11/2023	SM Line_0044043 - SM Line_0069853	3,237
9/28/2023	SM Line_0069854 - SM Line_0146154	9,087
10/17/2023	SM Line_0146155 - SM Line_0164023	4,206
10/18/2023	SM Line_0164024 - SM Line_0177631	1,792
		52,297

Copies of the emails between Respondent and Complaint and Respondent evidencing production of the documents are attached as Exhibit A. It is evident from the chart that Respondent produced documents to Complainant consistently and at regular intervals.

Respondents take issue with Complainant's statement that Respondent's initial productions were "devoid of any meaningful, internal communications or discussions of the issues at hand". Every document produced by Respondent is responsive to Complainant's document requests. Respondent objected to Complainant's requests as overbroad but nevertheless duly provided responsive documentation as requested by Complainant. Complainant is victim of its own failure to properly particularize their discovery demands. The Commission should not endorse or condone Complainant's attempt to fault Respondent for diligently responding to Complainant's overbroad requests.

A technical oversight – for which Respondent's Counsel apologized to Complainant's counsel – prevented Respondent from completing its final production as planned, and as provided under the Amended Scheduling Order on October 17, 2023. The technical issue in question was addressed and resolved promptly the following day.

The last set of documents produced contained multiple spreadsheets each including details, rates and financial information spreading over thousands of rows and that related to shipments of

third parties that are not relevant to this proceeding and are confidential. The process of reviewing and redacting those details took additional time that Respondent was not in a position to properly estimate at the beginning of the review process.

Respondent is confident that any of the issues raised by Complainant in its motion, related to other alleged deficiencies in Respondent's production, can be resolved amicably without judicial intervention.

CONCLUSION

Respondent does not oppose Complainant's request for an extension of the Scheduling Order, that is warranted by the complexity of the case and the amount of documentation involved.

/s/Wook Chung_____

Wook Chung

Montgomery McCracken Walker & Rhoads LLP

427 Madison Avenue, 24th Floor

New York, New York 10022

(212) 201-1931 / (212) 867-9500

Dated: October 25, 2023

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of October 2023, the foregoing Respondent's Response to Complainant's Motion for Extension of Scheduling Order, or, in the Alternative, Motion for Status Conference for Extension of Scheduling Order was served via electronic mail on:

Complainant
SAMSUNG ELECTRONICS AMERICA, INC.
C/O Holland & Knight LLP

Christopher R. Nolan
chris.nolan@hklaw.com
Allison N. Skopec
allison.skopec@hklaw.com
Chiara D. Kalogjera-Sackellares
chiara.sackellares@hklaw.com
Gerald A. Morrissey III
gerald.morrissey@hklaw.com
Kristine O. Little
kristine.little@hklaw.com
Hyun Yoon
Eric.yoon@hklaw.com

/s/Kaspar Kielland

Exhibit A

Archived: Wednesday, October 25, 2023 12:46:16 PM

From: [Chung, Wook](#)

Mail received time: Thu, 19 Oct 2023 02:20:58

Sent: Wednesday, October 18, 2023 10:20:59 PM

To: [Nolan, Christopher R \(NYC - X73307, CHI - X66515\)](#) [Morrissey, Gerald A \(WAS - X75497\)](#) [Kalogjera-Sackellares, Chiara D \(NYC - X73584\)](#) [Yoon, Eric \(PHL - X49537\)](#) [Little, Kristine O \(WAS - X75549\)](#)

Cc: [Chen, Albert \(NYC - X73519\)](#) [King, Laurie C \(DAL - X59440\)](#) [Grout, Andrew E \(MIA - X\)](#) [Sanchez, Jose \(HOU - X56882\)](#) [Emmanuel, Pascale \(PHL - X46884\)](#) [DeOrchis, Vincent M.](#) [Bonuzzi, Matteo](#) [Suddes, Gareth](#) [Holdsmen, Zachary](#) [Kielland, Kaspar](#)

Subject: Re: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Additional Production

Importance: Normal

Sensitivity: None

Attachments:

[MMWR_Attorney_01_large_06.png](#) 

Dear Counsel,

There were some documents that should have been included in yesterday's production. It is my oversight. Please accept my apologies.

Please find the enclosed link to our firm's file sharing system that will allow you to download an encrypted file containing the production volume name "SM Line_006" - with bates number - SM Line_0164024 - SM Line_0177631.

(*I stand corrected that yesterday's batch was "SM Line_005" - bates number SM Line_0146155 - SM Line_0164023).

This production is subject to the confidentiality agreement entered by the parties and SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the link below:

<https://mmwr.sharefile.com/d-s46e02b3ec8654f9ab1ace7a42670b18b>

The password to open this encrypted .zip file once it has been downloaded will follow in a separate email.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

regards,

Wook

Wook Chung | Partner

Montgomery McCracken Walker & Rhoads LLP

Tel: 212-551-7795 | Fax: 212-599-5085 | wchung@mmwr.com | [Attorney Profile](#)



From: Chung, Wook <WChung@mmwr.com>

Sent: Tuesday, October 17, 2023 10:27 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Yoon, Eric (PHL - X49537) <Eric.Yoon@hklaw.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>

Cc: Chen, Albert (NYC - X73519) <Albert.Chen@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; Grout, Andrew E (MIA - X) <Andrew.Grout@hklaw.com>; Sanchez, Jose (HOU - X56882) <Jose.Sanchez@hklaw.com>; Emmanuel, Pascale (PHL - X46884) <Pascale.Emmanuel@hklaw.com>; DeOrchis, Vincent M. <VDeOrchis@mmwr.com>; Bonuzzi, Matteo <MBonuzzi@mmwr.com>; Suddes, Gareth <gsuddes@mmwr.com>; Holdsmen, Zachary <ZHoldsmen@mmwr.com>; Kielland, Kaspar <KKielland@mmwr.com>

Subject: Re: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Additional Production

Dear Counsel,

We, on behalf of SM Line Corporation, make the fourth production. Please find the enclosed link to our firm's file sharing system that will allow you to download an encrypted file containing the production volume name "SM Line_004" - with bates number - SM Line_0146155 - SM Line_0150361.

This production is subject to the confidentiality agreement entered by the parties and SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the link below:

<https://mmwr.sharefile.com/d-sfecde9689f644e468a2d1bd692da1500>

The password to open this encrypted .zip file once it has been downloaded will follow in a separate email.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

regards,

Wook

From: Chung, Wook

Sent: Thursday, September 28, 2023 9:31 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Yoon, Eric (PHL - X49537) <Eric.Yoon@hklaw.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>

Cc: Chen, Albert (NYC - X73519) <Albert.Chen@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; Grout, Andrew E (MIA - X) <Andrew.Grout@hklaw.com>; Sanchez, Jose (HOU - X56882) <Jose.Sanchez@hklaw.com>; Emmanuel, Pascale (PHL - X46884) <Pascale.Emmanuel@hklaw.com>; DeOrchis, Vincent M. <VDeOrchis@mmwr.com>; Bonuzzi, Matteo <MBonuzzi@mmwr.com>; Suddes, Gareth <gsuddes@mmwr.com>; Holdsmen, Zachary <ZHoldsmen@mmwr.com>; Kielland, Kaspar <KKielland@mmwr.com>

Subject: RE: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Additional Production

Dear Counsel,

We continue to produce documents on a rolling basis. As a part of our fourth production, please find the enclosed two links that will allow you to download an encrypted file containing production volume name "SM Line_004_001 and SM Line_004_002" This production volume has bates number - SM Line_0069854 to SM Line_0146154.

Again, subject to the confidentiality agreement and/or Court order, SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the links below:

<https://mmwr.sharefile.com/d/652d1ef4d5704072>

<https://mmwr.sharefile.com/d/56d6017931c1413d>

The password to open the two encrypted .zip files once they have been downloaded will follow in a separate email. Use the same pw for both zip files.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

Regards,

Wook

From: Chung, Wook

Sent: Monday, September 11, 2023 2:21 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Yoon, Eric (PHL - X49537) <Eric.Yoon@hklaw.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>

Cc: Chen, Albert (NYC - X73519) <Albert.Chen@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; Grout, Andrew E (MIA - X) <Andrew.Grout@hklaw.com>; Sanchez, Jose (HOU - X56882) <Jose.Sanchez@hklaw.com>; Emmanuel, Pascale (PHL - X46884) <Pascale.Emmanuel@hklaw.com>; DeOrchis, Vincent M. <VDeOrchis@mmwr.com>; Bonuzzi, Matteo <MBonuzzi@mmwr.com>; Suddes, Gareth <gsuddes@mmwr.com>; Holdsmen, Zachary <ZHoldsmen@mmwr.com>; Kielland, Kaspar <KKielland@mmwr.com>

Subject: RE: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Additional Production

Dear Counsel,

We, on behalf of SM Line Corporation, continue to produce documents as a part of the discovery response. As a part of our third production, please find the enclosed link to our firm's file sharing system that will allow you to download an encrypted file containing production volume name "SM Line_003" This production volume has a starting Bates Number: SM Line_0044043 and ending SM Line_0069853.

Again, subject to any future entrance into a mutually agreeable confidentiality agreement and/or order, SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the link below:

<https://mmwr.sharefile.com/d-s473148021ca34fa8b4831a32809489f5>

The password to open this encrypted .zip file once it has been downloaded will follow in a separate email.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

regards,

Wook

From: Chung, Wook <WChung@mmwr.com>

Sent: Monday, August 21, 2023 7:27 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; Yoon, Eric (PHL - X49537) <Eric.Yoon@hklaw.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>

Cc: Chen, Albert (NYC - X73519) <Albert.Chen@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; Grout, Andrew E (MIA - X) <Andrew.Grout@hklaw.com>; Sanchez, Jose (HOU - X56882) <Jose.Sanchez@hklaw.com>; Emmanuel, Pascale (PHL - X46884) <Pascale.Emmanuel@hklaw.com>; DeOrchis, Vincent M. <VDeOrchis@mmwr.com>; Bonuzzi, Matteo <MBonuzzi@mmwr.com>; Suddes, Gareth <gsuddes@mmwr.com>; Holdsmen, Zachary <ZHoldsmen@mmwr.com>; Kielland, Kaspar <KKielland@mmwr.com>

Subject: Re: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Additional Production

Dear Counsel,

We, on behalf of SM Line Corporation, continue to produce documents as a part of the discovery response. Please find the enclosed link to our firm's file sharing system that will allow you to download an encrypted file containing production volume name "SM Line_001" This production volume has a starting Bates Number: SM Line_0035519 and ending SM Line_0044042.

As shared before, subject to any future entrance into a mutually agreeable confidentiality agreement and/or order, SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the link below:

<https://mmwr.sharefile.com/d-s9210d0d7fb8b472e82229c16a7081639>

The password to open this encrypted .zip file once it has been downloaded will follow in a separate email.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

regards,

Wook

From: Kielland, Kaspar <KKielland@mmwr.com>

Sent: Tuesday, August 15, 2023 4:26 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>

Cc: Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Yoon, Eric (PHL - X49537) <Eric.Yoon@hklaw.com>; Chen, Albert (NYC - X73519) <Albert.Chen@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; King, Laurie C (DAL - X59440) <Laurie.King@hklaw.com>; Grout, Andrew E (MIA - X) <Andrew.Grout@hklaw.com>; Sanchez, Jose (HOU - X56882) <Jose.Sanchez@hklaw.com>; Emmanuel, Pascale (PHL - X46884) <Pascale.Emmanuel@hklaw.com>; Kalogjera-Sackellares, Chiara D (NYC - X73584) <Chiara.Sackellares@hklaw.com>; DeOrchis, Vincent M. <VDeOrchis@mmwr.com>; Chung, Wook <WChung@mmwr.com>; Bonuzzi, Matteo <MBonuzzi@mmwr.com>; Suddes, Gareth <gsuddes@mmwr.com>

Subject: RE: FMC Docket No: 23-01 - SAMSUNG ELECTRONICS AMERICA, INC vs. SM LINE CORPORATION - Second Production

Dear Counsel:

As a part of SM Line's discovery responses involving the subject matter, we hereby provide a link to our firm's file sharing system that will allow you to download an encrypted file containing production volume name "SM Line_001" This production volume has a starting Bates Number: SM Line_0000001 and ending SM Line_0035518.

Subject to any future entrance into a mutually agreeable confidentiality agreement and/or order, SM Line makes this production for the sole purposes of SM's defense (if necessary, counterclaim) of SEA's claim. By opening the link, you agree that the documents also contain proprietary information (eg. rates and routes), so the documents must be protected and not be used for any other purposes.

To access the file sharing system and download the production, please use the link below:

<https://mmwr.sharefile.com/d-sccc0bfd7b9474273b4b02d86e21969b9>

The password to open this encrypted .zip file once it has been downloaded will follow in a separate email.

Should you have any issues accessing the link and downloading the documents, we have copied our colleague Gareth Suddes (in copy), our eDiscovery project manager, who will be able to assist.

Kind regards,

Kaspar Kielland